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Section

26. Inspections.

27. Offenses and penalties.

First Schedule: Specified Businesses and Premises.

Second Schedule: Fees.

Third Schedule: Penalties.

IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*] approved the following by-laws:—

Title

1. These by-laws shall be cited as the City of Masvingo (Registration and Licensed Premises) By-laws, 2025.

Application

2. These by-laws shall apply within the City of Masvingo Area.

Interpretation of Terms

3. In these by-laws—

"approved" means approved by the medical officer of health;

"bakery product" means bread, biscuits, rolls, tarts, caked, pies, confectionery or other food-stuffs of a similar nature;

"building by-laws" means the Model Building By-laws;

"council" means the City of Masvingo;

"equipment" includes apparatus, furnishings, utensils vehicles and construction equipment;

"fee" means the appropriate fee specified in section 52;

"fixed date" means the date specified in section 52;

"food" and "article of food" means any substance, in any form, state or stage of preparation, which is intended or is ordinarily used for human consumption and includes ice, but does not include a drug or water;

"form" means the appropriate form prescribed in the first schedule.

"handling" in relation to food, mean the manufacture, preparation, cooking or any other treatment of food and includes the storage or display of food;

"health inspector "means a person assigned by the council as a health inspector, and registered as such by the Health Professionals Council of Zimbabwe;

"licence "means a licence issued in terms of sections 4 and 5 which is valid and current;

"licensee "means any person who is the holder of licence;

"licensed premises "means premises in respect of which a licence is issued;

"nuisance" means a condition which endangers or is injurious or is likely to endanger or to be injurious to the health or interferes, or is likely to interfere with the ordinary comfort, of the public or any section of the public;

"officer of health" means a person assigned by the council as an officer of health;

"open food "means which is not in container of such material and so closed as to preclude the risk of contamination;

"perishable food" means food which is liable to deteriorate unless it is maintained at temperature not exceeding seven degrees Celsius;

"premises" means a building or part of a building or any forecourt or yard used in connection with any building or part of any building;

"sell" means sell by retail or wholesale and includes barter or exchange or offer or expose for sale;

"service providers" means consultancy firms, law firms, auctioneers, churches, medical institutions, herbalists, gyms, financial institutions, educational institutions, non-governmental organizations, parastatals, telecommunications, workshops and garages, labour unions and other commercial buildings.

Premises to be licensed

4. (1) No person shall carry out any business specified in the First Schedule or use any premises for any purpose specified in that Schedule—

(a) unless he or she is holder of a relevant licence; and

(b) except on the premises specified in such licence.

(2) An application for a licence together with the application fee, shall be submitted to Council in the form prescribed by council.

Issue of licences and registration certificates

5. (1) A licence may be issued for any period not exceeding one year, and shall, notwithstanding the date of issue, expire on the 31st December of the year of issue.

(2) A licence shall be issued—

(a) if the officer of health is satisfied that the premises conform to the requirements of the Part of these by-laws applicable to the business which the applicant proposes to carry on; and

(b) upon payment of the appropriate fee.

(3) A licence shall be refused by the officer of health if he or she considers that the premises do not comply with the Part of these by-laws applicable to the business in respect of which application is made.

(4) A licence shall subject to the provisions of these by-laws and any other applicable laws authorise the licensee to carry on the business—

(a) at the premises; and

(b) during the period stated in the licence.

(5) The Council may—

(a) refuse to issue a licence to an applicant who has been convicted of an offence under these by-laws;

(b) cancel, in writing, any licence if the holder thereof, or any servant or employee of his, is convicted of an offence, under these by-laws in respect of the licensed premises.

(6) A licence cancelled in terms of paragraph (b) of subsection (5) shall be surrendered to the council within forty-eight hours of written notice being given to the holder thereof.

(7) A licence shall not be transferred—

(a) from the premises in respect of which it was issued to any other premises; or

(b) from the person to whom it was issued to any other person.

(8) The application fee for a licence specified in the Second Schedule.

(9) A licence shall be issued in terms of section 25.

(10) The current licence shall be fixed and maintained in a conspicuous place on all licensed premises.

(11) Any person who ceases to operate in a licenced premises, shall notify council within 30 days.

General requirements for all food-handling premises

6. (1) No person shall use any premises for the handling of any food in the course of carrying on any business specified in the Second Schedule unless he or she complies with the provisions of this Part.

(2) In all premises where any business referred to in subsection (4) is carried on, the following provisions shall be complied with—

(a) the premises shall be connected to the water-supply of the council or a water-supply approved by the council;

(b) lighting and ventilation shall be provided in accordance with the provisions of the building by-laws;

(c) the floors of every room in which food is handled shall—

(i) be constructed of cement, concrete or other approved impervious material, brought to a smooth finish; and

(ii) when so required by the officer of health, be sufficiently graded and drained to a gully connected to the drainage system;

(d) the walls of every room in which food is handled shall be constructed of brick, concrete or other approved material, and the internal surface of every such wall shall be finished to the satisfaction of the officer of health;

(e) all junctions between wall and floors in rooms where food is handled shall be coved;

(f) every room in which food is handled shall have a ceiling or other approved means of preventing the entry into the room of dust from above;

(g) adequate storage facilities shall be provided by means of—

(i) glazed show-cases, cabinets or other approved facilities for the protection of open food from the risk of contamination by dirt, dust or flies, or in any other manner whatsoever; and

(ii) refrigerators, refrigerator-counter or refrigerated rooms for perishable food, which shall be capable of being maintained at a temperature not exceeding seven degrees Celsius; and

(iii) store-rooms or other approved vermin-and rodent-proof facilities for bulk food;

(h) an approved number of wash-hand basins, with a piped supply of hot and cold water connected thereto, shall be provided in apposition conveniently accessible for all persons engaged in the handling of food;

(i) an approved number of wash-hand sinks; with a piped supply of hot and cold water connected thereto, shall be provided and such sinks shall be of stainless steel or other similar material, and shall be adequate for the washing of all equipment used in the handling or consumption of food;

(j) all tables, equipment and furniture in or upon which food is handled shall be of stainless steel or other approved impervious material;

(k) approved sanitary accommodation shall be provided for employees of each sex, and, when so required by officer of health, there shall be provided, for the exclusive use of food-handlers, sanitary accommodation which—

(i) forms an integral part of the building accommodating the business; and

(ii) shall be entered from within the building;

(l) approved facilities shall be provided for the storage of employees' clothing;

(m) a sufficient yard, paved throughout, shall be available for the use of licenced premises, and direct access shall be provided from the premises of such yard;

(n) a platform, constructed of concrete or other impervious material, for the placing of refuse-bins shall be provided in an approved position, and, when so required by the officer of health, such platform shall be roofed, graded and drained to a gully connected to the drainage system and provided with a piped water supply.

(3) In premises which were used for the handling of food in connection with any business specified in the Second Schedule on the fixed date, the officer of health may relax or waive the requirements of paragraph (b) of subsection (2) if he or she is satisfied that—

(a) the premises cannot reasonably be made to comply with those requirements; and

(b) no danger to public health is likely to arise if such requirements are waived.

(4) No food which has been produced or prepared outside the areas referred to in section 2 shall be introduced, distributed or sold within such areas unless the premises where such food was produced or prepared have been approved by the officer of health.

Requirements for cafés, restaurants, tea-rooms, hotels, boarding houses and lodging-rooms

7. (1) In this section—

"boarding-house" and "hotel" means premises in which food is prepared or cooked and sold for consumption on the premises, and in which accommodation is provided for five or more persons who are not members of the family of the occupier of such premises;

"café" or "restaurants" means premises in which food is prepared or cooked and sold for consumption on or off such premises, and includes a fish-fryer's shop, but does not include a bakery, a butchery, a fishmonger's shop or a food-factory;

"lodging-rooms" means premises in which accommodation only is provided for hire or reward for five or more persons who are not members of the family of the occupier of such premises;

"tea-rooms" means premises in which non-alcoholic beverages only, with or without bakery products, are provided for sale for consumption on such premises.

(2) No person shall carry on the business of a café, restaurant, tea-room, hotel or boarding-house unless he complies with the provisions of sections 4, 5 and 6.

(3) In all premises were the business referred to in sub-section (2) is carried on, the following additional provisions shall be complied with—

(a) kitchen accommodation, which may include washing-up areas, shall be provided—

(i) with a floor area of not less than one-third of the floor area of the dinning room, and which contains approved facilities for the cleaning, cooking and handling of food; and

(ii) with adequate ventilation for the effective removal and innocuous disposal of hot air and fumes;

Provided that, in the case of tea-room where no kitchen accommodation is provided, an area of not less than five square meters shall be provided for the preparation of beverages and foodstuffs;

(b) approved sanitary accommodation shall be provided for the use of patrons—

(i) in cafes and restaurants where food is consumed on the premises; and

(ii) in board-houses and hotels where persons other than residents are catered for;

Provided that, in premises which were used as a café, restaurant, hotel or boarding-house before the fixed date, the officer of health may relax or waive the requirements of subparagraph (i) and (ii) of paragraph (a) and paragraph (b) of subsection (2) of this section if he is satisfied that—

(a) the premises cannot reasonably be made to comply with those requirements; and

(b) no danger to health is likely to arise if such requirements are waived.

(4) No person shall carry on the business of providing lodging-rooms unless he or she complies with the provisions of sections 4 and 5.

(5) In all premises where the business referred to in sub-section (4) is carried on, the following provisions shall be complied with—

(a) the premises shall be connected to the water-supply of the council or water-supply approved by the council;

(b) the total area of all windows in each room in such premises shall be equal to at least one-tenth of the floor area of each room, and approved means of through-ventilation or cross-ventilation for each room shall be provided.

(6) No person shall carry on the business of a hotel or boarding-house or of providing lodging-rooms unless—

(a) bathrooms and wash-hand basins are provided in an approved position within the premises—

(i) in the proportion of one bath and one basin for every six residents or part thereof; and

(ii) with a minimum of one bathroom for each sex, clearly marked as being for the use of either men or women; and

(iii) with a piped supply of hot and cold water connected to each bath and basin;

(b) approved sanitary accommodation for residents is provided within the premises—

(i) in an approved position; and

(ii) with a minimum of one water –closet for each sex, clearly marked as being for the use of either men or women; and

(iii) in rooms separate from the bathrooms, excluding bathrooms *en suite*:

Provided that, where accommodation includes bathrooms and water-closets en suite, such residents and facilities shall not be included when assessing the number of bathrooms and water-closets required for the remainder of the accommodation.

(7) Every person carrying on the business of a hotel or boarding-house or of providing lodging-rooms shall—

(a) provide for each person occupying a room at least five square metres of floor space; and

(b) provide adequate artificial lightning in any bathroom, entrance, passage and sanitary accommodation; and

(c) supply, for the use of residents, bedding, blankets, bed linen and towels which are clean and in good repair.

(8) The provisions of these by-laws shall not apply to hotels which are registered in terms of the Hotels Act [*Chapter 14:20*].

Requirements of butchers and fishmongers

8. (1) In this section—

"butcher" means any person who sells butcher's meat for human consumption;

"butcher's meat" means the flesh or offal's of any bovine, ovine, caprine, porcine, equine or game animal, but does

not include products manufactured from such flesh or offal's, or bacon, ham or biltong , or canned or cooked meat;

"butcher's shop" means premises used for carrying on the business of butcher ,and includes any forecourt or yard used in connexion with such business;

"fish" means the flesh or offal of any fish intended for human consumption, and include fresh or frozen fish, but does not include which has been canned, cured, smoked or dried, or fish made up into sealed packets in an approved manner for sale from-deep freeze units;

"fishmonger" means any person who sells fish, other than fried fish, for human consumption;

"fishmonger shop" mean any premises used for carrying on the business of a fishmonger, and includes any forecourt or yard used in connexion with such business.

(2) No person shall carry on the business of a butcher or fishmonger unless he complies with the provisions of sections 4, 5 and 6.

(3) In all premises where the business referred to in subsection (2) is carried on, the following additional provisions shall be complied with a thermostatically controlled refrigerated room shall provide with a capacity of not less than six cubic metres and fitted with hanging-rails and shelving or racks of non-corrodible material:

Provided that, in fishmonger's shops, adequate cold-storage facilities, to the satisfaction of the officer of health, may be provided instead of a refrigerated room;

(a) serving counters shall be provided, of approved impervious material, supported on a solid, impervious pedestal or so constructed as to afford a clear view from the front of the back of such counter;

(b) a sufficient number of containers of metal or other approved material shall be provided for the reception of all meat or fish waste.

(4) No person who carries on the business of a butcher shall—

(a) carry out fat-rendering or cooking in his butcher's shop in such a manner as to cause a nuisance;

(b) use or permit the use of sawdust on the floor in his butcher's shop;

(c) keep any live animal or poultry, or carry on the slaughtering or dressing of any animals or poultry, in his or her butcher's shop.

(5) No persons shall convey any butcher's meat except in a suitable vehicle which is—

(a) constructed in accordance with the requirements of the officer of health; and

(b) use solely for the conveyance of butcher's meat or meat products; and

(c) kept thoroughly clean at all times; and

(d) maintained so as to prevent such butcher's meat or meat products from coming into contact with flies, dust, dirt or any unclean matter or thing; and

(e) provided with a separate clean box or clean compartment for containing offal, and so constructed as to prevent any contact between such offal and such butcher's meat:

Provided that the officer of health may relax or waive the requirements of paragraphs (b) and (e)in respect of vehicles used for delivery of butcher's meat from butcher's shops if such meat is contained in an approved wrapping of such quality as will preclude the risk of contaminated of such butcher's meat.

(6) In this section—

"offal" shall not include clean tripe, or heads and feet which have been skinned and cleaned, or liver, kidneys, hearts, tongues and brains;

Requirements for bakeries and food-factories

9. (1) In this section—

"aerated water" means every kind of non-alcoholic, effervescent liquid prepared for human consumption and sold in bottles, syphons, casks or other vessels;

"aerated water factory" means any premises in which the manufacture or preparation of aerated water, soft drinks or cordials is carried on;

"baker" means a person whose business it is to carry on baking or the manufacture of bakery products for sale for human consumption;

"cordial" includes every kind of non-alcoholic liquid, whether frozen or not, which is—

(a) intended for human consumption; and

(b) ordinarily diluted before being consumed;

"food-factory" means any premises in which food is manufacture or prepared or packed or repacked for sale from premises other than those in which such food is manufactured or prepared or packed or repacked, and shall include an aerated-water factory but not a slaughterhouse or a dairy;

"soft drink" includes every kind of non-alcoholic liquid other than aerated water, whether frozen or not, which is—

(a) intended for human consumption; and

(b) not ordinarily diluted before being consumed.

(2) No person shall carry on the business of a bakery or food-factory unless he complies with the provisions of sections 4, 5 and 6.

(3) In all premises which a business referred to in sub-section (2) is carried on, the following additional requirements shall be compiled with—

(a) approved dough-making machines shall be provided and used for the mixing dough or butter;

(b) the opening of any boiler or oven-furnace shall be sited outside any room in which food is handled, and at least three metres from any part of any door or window of such room;

(c) the premises shall not form part of, or communicate directly with, any other premises in which processes other than those connected with the handling of food are carried on;

(d) approved facilities shall be provided for the washing and sterilizing of all bottles, syphons, vessels and other containers used in the handling of food and drink:

Provided that, in premises which were used as a bakery or a food-factory before the fixed date, the officer of health may relax or waive the requirements of paragraph (b) if he or she is satisfied that—

(a) the premises cannot reasonably be made to comply with these requirements; and

(b) no danger to health is likely to arise if such requirements are waived.

Requirements for food-purveyors and caterers

10. (1) In this section—

"caterer" means a person whose business it is to supply food on or at premises other than licensed premises;

"food-purveyor" means any person whose business is to sell food for human consumption, and does not include a meat-purveyor and a fruit-and-vegetable dealer, but does not includes a hawker, a street vendor or a street food-vendor;

"food-purveyor's shop" means any premises used for the purpose of the business of a food-purveyor;

"meat-purveyor" means any person whose business it is to sell prepacked butcher's meat for human consumption;

"prepacked butcher's meat" means butcher's meat which has been prepared, wrapped and chilled in approved premises.

(2) No person shall carry on the business of food-purveyor or a caterer unless he complies with the provisions of sections 4, 5 and 6.

Provided that—

(i) the premises where no preparation or cooking of food or handling of open food is carried on, the officer of health may relax or waive the requirements of paragraphs (i) and (k) of subsection (2) of section 6; and

(ii) any person who is the holder of a licence in respect of any premises in which food is handled shall not be required to obtain a food-purveyor's licence in respect of the same premises.

Requirements of bakeries and food-factories

11. (1) In this section—

"food-vending machine" means an automatic machine from which food is dispensed upon the deposit in such machine of the appropriate coin specified on or for such machine.

(2) No person shall carry on the business of dispensing food from a food-vending machine unless he complies with the provisions of sections 4 and 5.

(3) No person shall install a food-vending machine, or permit a food-vending machine to be installed, or to remain installed, on any premises unless—

(a) the premises comply with the provisions of section 6; and

(b) the machine is in a position on the premises which enables it to be replenished or recharged with food from within the premises; and

(c) if perishable food is to be dispensed, such machine is—

(i) fitted with a thermometer which indicates the temperature at which perishable food in the machine is maintained; and

(ii) provided with an automatic trip-switch which operates to prevent the dispensing of any perishable

food from the machine if the temperature within the machine exceeds seven degrees Celsius.

(4) No person shall dispense food or permit food to be dispensed from a food-vending machine unless such food is prepared in approved premises and is contained in hygienically sealed packets:

Provided that the medical officer of health may permit food to be dispensed from a food-vending machine in an unwrapped state if he is of the opinion that the consumption of such food by humans will not constitute a danger or be injurious to health.

(5) Every licensee of food-vending machine shall—

(a) maintain such machine in a thoroughly clean condition; and

(b) strip and thoroughly clean and sterilise all containers used for dispensing liquid foods from the food-vending machine at each refilling, or once a week, whichever is the lesser period; and

(c) take precautions to ensure that all perishable food in the food-vending machine is—

(i) kept at a temperature not exceeding seven degrees Celsius; and

(ii) removed from such machine if the temperature within the machine exceeds seven degrees Celsius.

(6) If, upon examination of a food-vending machine or any food therein, the officer of health or a health inspector is of the opinion that such machine or such food is, or is likely to be, a danger to health, he may prohibit the use of such machine until he is satisfied that such danger has ceased to exist.

(7) Nothing contained in this Part shall be deemed to prohibit the dispensing of hot food from a vending-machine if—

(a) such food is maintained at a temperature not less than sixty-three degree Celsius; and

(b) the provision of this section are complied with *mutatis mutandis*.

Requirements for barbers and hairdressers

12. (1) In this section—

"barber or hairdresser" means any person who carries on the business of shaving, cutting or dressing the hair of human beings;

"barber's or hairdresser's shop" means any premises in which the business of barber, hairdresser or beautician is carried on;

"beautician" means any person whose job is to give people beauty treatment.

(2) No person shall carry on or conduct the business of a barber, hairdresser or beautician unless he or she complies with the provisions of sections 4 and 5.

(3) In all premises where the business referred to in sub-section (2) is carried on, the following provisions shall be complied with—

(a) all parts of the premises shall be lighted and ventilated in accordance with the provisions of the building by-laws;

(b) an adequate number of wash-basins or other approved fitments with an adequate supply of piped hot and cold water connected thereto shall be provided;

(c) the splash-back area to every basin of fitment shall be covered with glazed tiles or other approved material to a height of not less than five hundred millimetres above and for the full width of the wash-basin or fitment;

(d) the surfaces of all shelves or furniture on which instruments used by any barber or hairdresser shall be of glass or other approved material;

(e) the floors shall have an even surface capable of being easily cleaned;

(f) the walls shall be so constructed as to be easily cleaned;

(g) approved sanitary facilities shall be available for customers and employees of each sex;

(h) no part of the premises shall be used as a dwelling or place where food is handled:

Provided that a part of the premises may be approved for the preparation of refreshments incidental to the business, upon such conditions as may be specified, in writing, by the officer of health.

(4) Every barber, beautician and hairdresser, and every person in his employ, shall—

(a) at all times maintain his or her premises, equipment and instruments in a state of thorough cleanliness and in good repair;

(b) wear clean, approved clothing;

(c) use a clean towel or covering for each customer;

(d) use soap in liquid, powered or tube form only;

(e) use styptic agents in liquid or powder form only;

(f) ensure that all hair cuttings are placed in and approved, covered receptacle provided for the purpose;

(g) after each time of use on any one customer, clean and disinfect all scissors, clippers, combs, brushes and other instruments or equipment used in any process of, or incidental to, his work;

(h) use only hair-brushes or neck-brushes which shall be clean, and washed and disinfected at least once every day.

(5) No barber, beautician or hairdresser shall permit any person who appears to him to be verminous, or suffering from any disease of the skin or hair, or from any infectious, contagious or communicable disease, to remain in his or her shop.

(6) Every barber, beautician or hairdresser shall, if he or any person in his employ is apparently suffering from any disease of the skin or hair, or from any infections, contagious or communicable disease, immediately—

(a) ensure that such person ceases working in such premises; and

(b) notify the medical officer of health of such disease.

(7) No barber's, beautician's or hairdresser's shop shall be used as, or communicate directly with, a sleeping apartment or place used for the preparation or storage of food.

(8) No person shall deposit, throw or place, or cause or suffer to be deposited, thrown or placed, upon any street, sidewalk or public place any human hair.

(9) No person shall carry on or perform any hairdressing or haircutting in any street or any place except in a designated shop.

(10) No barber's or hairdresser's shop shall be used for any purpose other than the carrying on of the business of a barber, beautician or hairdresser without the approval of the officer of health.

Requirements for laundries, launderettes and laundry depots

13. (1) In this section—

"dry-cleaning" means cleaning with spirit or any means other than with water;

"laundry" means any premises or place in which washing or dry-cleaning is carried on for payment, but excludes a launderette;

"launderette" means premises in which—

(a) domestic-type washing-machines, with or without domestic-type ironing-appliances, are provided by the occupier for the use of his customers, whether or not such washing-machines or ironing-appliances are operated solely by the customer; and

(b) Fewer than five persons are employed on the premises;

"laundry depot" means any premises utilised by the licensee of any laundry or launderette for the reception or storing of wearing-apparel, household and domestic linen or other textiles or fabrics intended for washing;

"washing" means to wash, clean by any means, mangle or iron articles of wearing-apparel, household or domestic linen or other textiles or fabrics, and includes any process incidental thereto.

(2) No person shall carry on the business of a laundry or launderette unless he or she complies with the provisions of sections 4 and 5.

(3) In all premises where the business referred to in subsection (2) is carried on, the following provisions shall be complied with—

(a) the premises shall be connected to the water-supply approved by the council;

(b) all parts of the premises shall be lighted and ventilated in accordance with the provisions of the model building by-laws;

(c) effective means shall be provided for the removal from the premises of all vapours, gases and dust, and for their innocuous disposal into the open air;

(d) the walls shall be so constructed of brick, concrete or other approved material, and their internal surfaces shall be plastered and brought to a smooth finish and covered with a light-coloured, washable paint or other approved impervious material;

(e) the floors shall be constructed of smooth cement, concrete or other similar approved substantial and impervious material, and when so required by the medical officer of health, shall be sufficiently graded and drained to a gully connected to the sewerage system;

(f) all junctions between walls and floors shall be coved;

(g) approved sanitary accommodation and ablution facilities shall be provided for employees of each sex;

(h) change-room facilities for employees shall be provided, to the satisfaction of the medical officer of health;

(i) a store-room or other approval facilities shall be provided for the storage of soap, dry-cleaning fluids and other articles incidental to the business;

(j) no part of the premises shall be used as, or communicate directly with, a dwelling or place where food is prepared, handled or stored;

(k) all tables, shelving and other furniture used in the laundry or launderette shall be of approved impervious material.

(4) No person shall use any premises as a laundry depot unless he complies with the provisions of sections 4 and 5.

(5) In all premises where the business referred to in subsection (4) is carried on, the following provisions shall be complied with—

(a) the internal surfaces of the walls shall be so formed as to be capable of being easily cleaned;

(b) the laundry depot shall not form part of, or communicate directly with, any dwelling or premises, or portion of any dwelling or premises, on which is carried on any trade, business or occupation involving the manufacture, preparation, handling, sale or storage of articles of food or drink or the business of a hairdresser;

(c) containers of metal or other approved material shall be provided for the storage of soiled or dirty articles prior to removal to the laundry or launderette;

(d) a wash-hand basin, with a piped supply of hot and cold water connected thereto, shall be available on the premises for the use of any person engaged in the handling of soiled or dirty articles.

(6) Every licensee or person in charge of a laundry, launderette or laundry depot shall—

(a) keep the premises at all times in a clean and sanitary condition, and in good repair;

(b) maintain at all times in a clean condition all equipment, utensils and vehicles used in connection with the business;

(c) cause every person, while employed in the laundry or launderette, to wear clean overclothing;

(d) provide and maintain a sufficient supply of soap, nail-brushes and clean towels or other approved drying facilities for the use of persons employed on the premises;

(e) keep untreated articles at all times isolated from all treated articles, and all articles shall, in all other respects, be so handled, treated and transported without being exposed to contamination or infection;

(f) take all reasonable measures to maintain his or her premises free from flies, rodents, cockroaches or other vermin;

(g) keep in the premises only such articles as have been, or are required to be, washed or dry-cleaned;

(h) maintain his name and address legibly written in a conspicuous position on every vehicle used for the conveyance of articles which have been washed or are collected for the purpose of washing.

(7) Nothing in these by-laws shall be deemed to apply to any washing carried out in a private dwelling-house.

(8) No person who is known or suspected to be suffering from any infectious or contagious disease, or who is known or suspected to have been in contact with any person suffering from any infectious or contagious disease, shall—

(a) remain or be employed in any laundry, launderette or laundry depot; or

(b) perform any duty or do any act connected with a laundry, launderette or laundry depot:

Provided that the officer of health may, where he or she is satisfied that no risk of the spread of disease is involved, exempt any person from the requirements of this subsection.

Requirements for stables and for keeping equine animals

14. (1) In this section—

"dwelling" means any house, hut, room, shed or other structure or place the whole or part of which is used as a human abode;

"keep" includes to keep, stable, walk exercise, rest, feed or permit to remain;

"premises" includes any piece of land registered as a stand, lot or plot, or in any other manner, in a deeds registry;

"stable" means any building, shed or structure in which equine animals are kept;

"trade premises" includes any premises to which members of the public resort for the purchase of goods or services,

or goods and services, but does not include any land used for an agricultural show or an approved enclosed market.

(2) No person shall cause or permit any stable to be used or keep any equine animal on any premises unless he complies with the provisions of sections 4 and 5.

(3) Every stable referred to in subsection (2) shall comply with the following requirements—

(a) the walls and floors shall be constructed of brick, concrete or other approved material; and

(b) the roof shall be so constructed as to be thoroughly waterproof; and

(c) natural lighting and ventilation shall be provided in accordance with the provisions of the model building by-laws; and

(d) a floor space of not less than five comma five square metres shall be provided for every equine animal:

Provided that the provisions of this subsection shall not apply to stables which were in existence before the fixed date until a period of six months has elapsed from the date of which a person who uses a stable or keeps an equine animal on his or her premises receives notice, in writing, from the officer of health requiring him to comply with the requirements of this subsection by a specified date.

(4) No person shall keep any equine animal on any premises, other than licensed premises, unless the written consent of the officer of health has been obtained.

(5) The officer of health may withdraw any consent given in terms of subsection (4) if, in his opinion, the keeping of equine animals on the premises is causing a nuisance.

(6) No person shall keep any equine animal—

(a) on any premises less than nought comma eight hectare in extent; and

(b) at a density greater than one equine animal for each complete nought comma four hectare of land; and

(c) on any premises which are not adequately fenced so as to prevent the animals straying therefrom; and

(d) in such a manner as to cause a nuisance:

Provided that, on any premises in excess of four hectares, the number of equine animals which may be kept shall be at the discretion of the council.

(7) The officer of health may relax or waive the requirements of paragraphs (a) and (6) of subsection (6) in respect of any premises which were used for the keeping of equine animals before the fixed date if he or she is satisfied that no nuisance is likely to arise if such requirements are waived.

(8) No person shall, after the fixed date, erect any stable unless it is situated at least—

(a) thirty metres from the nearest dwelling on any adjacent premises; and

(b) fifteen metres from—

(i) any water-supply other than a stand-pipe; and

(ii) the boundary of the premises; and

(iii) any trade premises.

(9) Every person who keeps any equine animals on any premises shall—

(a) maintain the stable in a clean condition and in good repair; and

(b) at least once in every twenty-four hours, cause all manure to be—

(i) removed therefrom; and

(ii) disposed of, to the satisfaction of the officer of health or a health inspector; and

(c) provide a sufficient and wholesome supply of water for drinking and cleaning purposes.

(10) Owners or lessees of stables shall take all necessary precautions to prevent breeding of flies, and shall, when required so to do, use such traps and insecticides for the destruction of flies as may be considered necessary by the officer of health.

Bulk water

15. (1) In this section—

"bulk water" means water intended for portable uses delivered to consumers or water purveyors by means other than pipeline or bottled water.

(2) No person shall be allowed to deliver bulk water without obtaining licence from council.

Grain buying

16. (1) In this section—

"grain buying" means local trade in cereals and other food grains such as wheat, barley, maize and rice, oil seeds and beans.

(2) Any person involved in the business of grain buying shall be required to obtain a licence from council.

Liquefied petroleum gas trading

17. (1) In this section—

"liquefied petroleum gas trading" means the trading in gas for domestic use.

(2) No person shall be allowed to carry out gas trading in council area without a valid licence from council.

Grinding mill

18. (1) In this section—

"grinding mill" means a machine used for the wet or dry fine crushing of any non metallic mineral including hammer, roller, road, pedal, ball and fluid energy.

(2) No person shall be allowed to carry out milling business without obtaining a valid licence from council.

Sand mining

19. (1) In this section—

"sand mining" means extraction of sand mainly through an open pit.

(2) No person shall be allowed to engage in sand extraction and selling the same within the council area.

(3) The activities of sand mining shall be the prerogative of the council.

(4) Individuals or companies who are interested in sand mining may engage council through a memorandum of understanding and the council shall issue out a licence.

Sand abstraction

20. (1) In this section—

"sand abstraction" means the process of drawing water from sand rivers.

(2) Any person engaging in sand abstraction business is required to obtain permission from council.

Boat cruising

21. (1) In this section—

"boat cruising" means any activities in a water vessel within a river or dam for leisure or vacationing purposes.

(2) Any person engaging in boat cruising activities is required to obtain a licence or permit from council.

Fish pond

22. (1) In this section—

"fish pond" means a retention basin used in aquaculture for fish farming.

(2) Any person engaging in fish farming is required to obtain licence from council.

Service providers

23. In these by-laws, every non-trading premise which does not have goods for sale shall be registered under these by laws, and these includes among others Consultancy firms, law firms, auctioneers, medical institutions, herbalists, gyms, financial institutions, educational institutions, non-governmental organisations, parastatals, telecommunications, workshops and garages, labour unions and other commercial buildings.

Display of by-laws, licence and registration certificate

24. (1) A copy of these by-laws, may be obtained on application to the town clerk for a prescribed fee.

(2) A current registration certificate or licence shall be fixed and maintained in some conspicuous place on all premises registered under these by-laws.

(3) Every holder of a registration certificate or licence shall forthwith produce his or her registration certificate or licence on demand being made by an officer of the police or an authorised official.

Prohibitions

25. (1) If, in the opinion of the Environmental Health Officer or Environmental Health Technician or a health inspector, food which is sold or prepared at any food-premises registered in terms of theses by-laws is adulterated, unwholesome or diseased, the council may, by order, prohibit—

(a) the sale of any food prepared on such premises; or

(b) the sale of any food on or from such premises.

(2) If any food-premises registered in terms of these by- laws become unfit for the sale, storage or preparation of food, whether by reason of failure to comply with the provisions of these by-laws or any other cause, the council may, by order, prohibit—

(a) the sale of any food prepared on such premises; or

(b) the sale of any food on or from such premises.

(3) If any premises registered in terms of these by-laws other than food-premises, become unfit for the carrying on of the trade or

business for which such premises are registered, the council may, by order, prohibit the carrying on of such trade or business within such premises.

(4) In making any order in terms of subsection (1), (2) or (3), the council shall inform the holder of the registration certificate or licence issued in respect of the premises concerned of—

(a) the reason for the issue of the order; and

(b) the measures, if any, which the council considers that he or she should take to secure the rescission of the order.

(5) No person shall—

(a) sell any food on or from any premises; or

(b) carry on any trade or business within any premises;

In respect of which the council has issued an order in terms of subsection (1), (2) or (3) unless—

(i) he has taken any measures specified by the council in terms of paragraph (b) of subsection (4); or

(ii) the council or a health inspector is satisfied that the premises are fit for such purpose;

Inspections

26. The officer of health or a health inspector may at all reasonable times enter and inspect any premises to which these by-laws apply, for the purpose of ascertaining whether the by-laws are being complied with.

Offences and penalties

27. (1) Any person who—

(a) contravenes or fails to comply with any provision of these by-laws; or

(b) contravenes or fails to comply with any requirement set out in a notice issued and served to him or her in terms of these by-laws; or

(c) contravenes or fails to comply with any condition imposed in terms of these by-laws; or

(d) knowingly makes a false statement in respect of any application in terms of these by-laws; or

(e) obstructs, hinders or interferes with the Environmental Health Officer/Environmental Health Technician, or authorised official or other official of the Council acting under powers delegated to him or her, in the exercise of any power or the performance of any duty under these by-laws; or

(f) fails or refuses to furnish to an Environmental Health Officer/ Environmental Health Technician or authorised official or other official of the Council acting under power delegated to him or her, with any documentation or information required for the purposes of these by-laws or furnishes a false or misleading document or false or misleading information; or

(g) fails or refuses to comply with any instruction given in terms of or for the purposes of these by-laws; or

(h) pretends to be an Environmental Health Officer or authorised official or other official of the Council acting under power delegated to him or her; or

(i) forges any licence or registration certificate/licence; or

(j) with intent to deceive, alters or erases any part of a licence or any entry lawfully made thereon; or

(k) intentionally produces or uses any forged licence which has been unlawfully altered or from which erasures have been unlawfully made; or

(1) makes any unlawful entry on a licence; or

(m) who, except as may be authorised in terms of these by-laws, hires, lends, codes, transfers, or in any way whatsoever hands over a licence to any other person; or

(n) with intent to deceive, makes use for any purpose whatsoever of any licence or registration issued in terms of these by-laws, or for any purpose of these by-laws which is not his or her own;

shall be liable to a fine specified in the Second Schedule.

(2) A person who causes or incites another person to commit an offence referred to in subsection (1), or who being in a position of authority over another person permits or allows him or her to commit an offence, shall himself or herself be liable to a fine specified in the Third Schedule and council shall cancel a licence if the holder is penalised of any contravention of the provisions of these by-laws.

(3) Any licence cancelled in terms of subsection (2) shall not be renewed until a period of one year has lapsed from the date of cancellation.

(4) Where the licence is cancelled in terms of subsection (4) the holder shall return the licence to the Environmental Health Officer within forty-eight hours of being given notice of such cancellation.

FIRST SCHEDULE (*Section 4*)

SPECIFIED BUSINESSES AND PREMISES

1. Café.
2. Fish-fryer.
3. Restaurant.
4. Tea-room.
5. Hotel.
6. Boarding-house.
7. Lodging-rooms.
8. Butcher.
9. Fishmonger.
10. Bakery.
11. Food-factory.
12. Aerated-water factory.
13. Food-purveyor.
14. Caterer.
15. Meat-purveyor.
16. Fruit-and-vegetable dealer.
17. Food-vending machine.

18. Barber.
19. Hairdresser.
20. Laundry.
21. Launderette.
22. Laundry depot.
23. Stable.
24. Bulk water.
25. Grain buying.
26. Cattle buying.
27. Gas trading.
28. Grinding mill.
29. Sand mining.
30. Sand abstraction.
31. Boat cruising.
32. Fish pond.
33. And other Registered and Licensed Premises.

SECOND SCHEDULE

FEES

Description	Section	Amount (USD)	Duration
Licence application fee	4	30,00	per application
Shop Licence fees:			
Shop Size:			
(i) 1-25 m^2	4	200,00	Annual
(ii) 26-100 m^2	4	230,00	Annual
(iii) 101-200m^2	4	260,00	Annual
(iv) 201-400m^2	4	340,00	Annual
(v) 401-500m^2	4	520,00	Annual
(vi) 501-700m^2	4	1 000,00	Annual

Description	Section	Amount (USD)	Duration
(vii) 701-1000m²	4	1 900,00	Annual
(viii) 1001-upwards m²	4	2 500,00	Annual
Garages:			
(i) 1 - 25m²	4	120,00	Annual
(ii) 26-100m²	4	150,00	Annual
(iii) 101-200m²	4	200,00	Annual
(iv) 201-400m²	4	250,00	Annual
(v) 401-500m²	4	300,00	Annual
(vi) 501-700m²	4	450,00	Annual
(vii) 701-1000m²	4	600,00	Annual
(viii) 1001-upwards m²	4	750,00	Annual
Registration Certificates:			
(i) Produce or Firewood Stalls	4	70,00	Annual
(ii) Barber Shops	4	50,00	Annual
(iii) Hairdressing Salons —Class A	4	240,00	Annual
Class B	4	220,00	Annual
(iv) Photographer	4	40,00	Annual
(v) Photographic Studios	4	170,00	Annual
(vi) Dry Cleaners & Laundries Incl their Agencies	4	170,00	Annual
(vii) Media Agencies or Commodity Brokers	4	340,00	Annual
(viii) Traditional Healers and herbal shops	4	100,00	Annual
Inspection Fee— Commercial transport and fuel deports or Manufacturing	4	20,00	

Description	Section	Amount (USD)	Duration
(vi) Depots			
(a) Commercial transport and fuel Depots	4	2 000,00	Annual
(b) Commercial depots not classified in (a)	4	1 500,00	Annual
(c) Other depots and small Commercial Offices	4	120,00	Annual
(d) Typing services and photocopying	4	120,00	Annual
(vii) Manufacturing			
(a) Light industrial			
(i) Panel Beating or Welding	4	120,00	Annual
(ii) Tailors, Knitting, carpentry, stone curving	4	120,00	Annual
(b) Heavy Industrial Includes:			
Foundries class (a)	4	1 670,00	Annual
All engineering and manufacturing class (b)	4	1 500,00	Annual
(c) Liquor manufacturing (Breweries, Wineries etc)	4	10 000,00	Annual
Bottle store or liquor retail or wholesale	4	400,00	Annual
(viii) Repair Workshops and Garages			
(a)(i) Light Industry standard car repairs or panel beating shops or electronic repair	4	120,00	Annual
(ii) Watch Repairs including jewellers	4	40,00	Annual

Description	Section	Amount (USD)	Duration
(iii) Shoe repairs and cycle repair and other accessory repair workshops not covered by (i) and (ii)	4	40,00	Annual
(b) Heavy Industry or Commercial			
(i) Vehicle repair, Panel beating & Spray painting	4	670,00	Annual
(ii) Cinema Halls, Gym, Video Shops, recording bars	4	120,00	Annual
(iii)(a) Big restaurants and Inns	4	500,00	Annual
(b) Coffee bars, cafes, restaurants, Milk bars etc	4	200,00	Annual
(iv) Microfinance, security firms, Insurance brokers, Money lending	4	1 000,00	Annual
(v) Banks, Parastatals, Insurance	4	2 000,00	Annual
(vi) Hotels: graded	4	1 000,00	Annual
non-graded	4	450,00	Annual
lodges	4	350,00	Annual
Boarding houses	4	350,00	Annual

Description	Section	Amount (USD)	Duration
(a) Legal practitioner firms, accountancy firms, consultancy firms, auctioneers, non-governmental organisations, labour unions, surgeries and offices run in the practice of a professionally recognised qualification for example mars	4	340,00	Annual
(b) Private hospitals or Clinics	4	670,00	Annual
(c) Works of creative art design	4		Annual
Class (a)	4	120,00	Annual
Class (b)	4	100,00	Annual
(xii) Factories	4	340,00	Annual
(xiii) Bakeries	4		Annual
(a) In store	4	500,00	Annual
(b) Ordinary	4	600,00	Annual
(xiv) Millers Class B	4	500,00	Annual
(xv) Metered Taxis	4	80,00	Annual
Driving schools (Class 1 and 2)	4	500,00	Annual
Driving school (Class 4)	4	250,00	Annual
(xvi) Commuter Omnibus each	4	170,00	Annual
Offices	4	140,00	Annual
(xvii) Construction company	4	340,00	Annual
Building Contractor (including specialist services)	4	170,00	Annual
(xviii) Vending Tricycle	4	70,00	Annual
(xix) Preschool Nursery	4	100,00	Annual

Description	Section	Amount (USD)	Duration
(xx) Creche	4	140,00	Annual
(xxi) Cellphone Base station	4	600,00	Annual
(xxii) Show grounds Temporary	4	40,00	Annual
(xxiii) Cloak rooms	4	70,00	Annual
(xxiv) Grinding mills: Class A	4	100,00	Annual
Millers Class B	4	340,00	Annual
(xxv) Phone shops or Internet Café	4	120,00	Annual
(xxvi) Garage Licence	4	300,00	Annual
(xxvii) Airtime Vendor	4	20,00	Annual
(xxviii) Car Wash	4	150,00	Annual
(xxviiii) Money transfer agencies	4	170,00	Annual
Fish Pond:	4	5,00	per square metre
Bulk water	4	50,00	Annual
Advertising agencies (mobile etc)	4	0,00	
Fuels and Gases Fees:			
Fuel Depot	4	2 000,00	Annual
Fuel Service Stations	4	2 000,00	Annual
LPG Gas Retail (Upto 900 kgs)	4	170,00	Annual
LPG Gas Bulk (901kgs to 5000 kgs)	4	300,00	Annual
LPG Wholesale (Over 5001 to 43 000 kgs)	4	500,00	Annual
Sand, gravel, pit sand, quarry transport services and any other transport services	4	150,00	Annual
Boat cruise	4	0,00	
Amusement parks	4	0,00	
Fresh produce	4	0,00	
Mobile kitchen	4	0,00	

THIRD SCHEDULE

PENALTIES

Description	Section	Amount (USD)
Operating without a licence or registration from council	4	20,00
Use of unauthorised or unapproved premises	7	20,00
Keeping live animals or slaughtering animals in butchery shops	7	40,00
Operating in a dirty environment	7	20,00
Trading in unauthorised class of goods	7	20,00
Failure to Comply Requirements for cafés, restaurants, tea-rooms, hotels, boarding houses	7	20,00
Failure to Comply Requirements of butchers and fishmongers	8	20,00
Failure to Comply Requirements for bakeries and food-factories	9 and 11	20,00
Selling food prepared from unauthorised premises	9, 10 and 11	20,00
Failure to Comply Requirements for laundries, launderettes and laundry depots	13	20,00
Failure to Comply Requirements for stables and for keeping equine animals	14	20,00
Failure to display a license	24	10,00

The fines and penalties are payable in local currency at the prevailing interbank rate.